

2. SLATER v. RALEY'S SOUTH Y CENTER, SC20210019**Motion to Dismiss**

On February 3, 2026, pursuant to Code of Civil Procedure sections 583.310 and 583.360, defendant Raley's South Y Center ("defendant") filed the instant motion to dismiss for failure to bring the action to trial within five years.

On March 16, 2026, plaintiff Brian Slater ("plaintiff") filed a timely opposition. Defendant filed no reply.

1. Background

Plaintiff commenced this personal injury action on February 1, 2021. A trial date was set for April 28, 2025. During the settlement conference on March 25, 2025, plaintiff's counsel informed the court that plaintiff would be undergoing an MRI to determine whether plaintiff needed surgery on his shoulder as a result of the underlying incident. The court vacated the trial date.

On October 1, 2025, the matter was before the court for re-setting of trial. A specially-appearing attorney for Mr. Woelfel indicated Mr. Woelfel was on medical leave and had instructed the attorney to request a continuance of 30 to 60 days to come back and re-set trial. Defendant did not object. The court granted plaintiff's request and continued the matter to January 6, 2026.

Defense counsel failed to appear at the January 6, 2026, hearing, as well as the next hearing on January 20, 2026. The court has reviewed the audio recordings of both hearings.

During the January 6 hearing, the court noted the upcoming five-year deadline under Code of Civil Procedure section 583.310, and pointed out that neither party had filed the required Case Management Conference Statement prior to the hearing. Mr. Woelfel stated that, since the October 1, 2025, hearing, he had not heard from defense counsel and had not reached out to defense counsel. The court continued the

matter for two weeks, and issued an Order to Show Cause regarding defense counsel's failure to appear. The court directed the clerk to serve notice upon defendant.

During the January 20 hearing, the court clerk indicated that notice had not been served upon defendant, as directed by the court on January 6. Again, the court raised the issue of the five-year deadline. Mr. Woelfel made an oral request to set trial as soon as possible and grant an extension for the five-year deadline due to (1) the non-appearance of defense counsel, and (2) the prior good-cause determination to vacate the April 28, 2025, hearing based on the uncertainty of whether plaintiff required shoulder surgery. Mr. Woelfel informed the court that, ultimately, plaintiff and his doctors determined he did not need surgery. The court indicated it would continue the matter to February 3, 2026, and asked Mr. Woelfel if that date would work. Mr. Woelfel raised no objection. Instead, he responded, "I will make that work, Your Honor." The court continued the matter to February 3, 2026.

To date, plaintiff has not brought the case to trial.

2. Legal Principles

"An action shall be brought to trial within five years after the action is commenced against the defendant." (Code Civ. Proc., § 583.310.) "This dismissal requirement is mandatory and 'not subject to extension, excuse, or exception except as expressly provided by statute.' [Citation.] 'Under the press of this statutory requirement, anyone pursuing an "action" in the California courts has an affirmative obligation to do what is necessary to move the action forward to trial in timely fashion.' [Citation.]" (*Seto v. Szeto* (2022) 86 Cal.App.5th 76, 85.)

If a plaintiff does not bring an action to trial within the time prescribed, the action "shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties." (Code Civ. Proc., § 583.360, subd. (a).) To determine whether the prescribed period has expired, the court must exclude any time when, amongst other reasons, "[b]ringing the action to trial ... was impossible, impracticable, or futile." (Code

Civ. Proc., § 583.340, subd. (c).) The plaintiff bears the burden of proving that the circumstances warrant applications of the exception to the five-year rule; the trial court has discretion to determine whether the exception applies. (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 731.) Applicability of the Code of Civil Procedure section 583.340, subdivision (c) exception “is generally fact specific, depending on the obstacles faced by the plaintiff in prosecuting the action and the plaintiff’s exercise of reasonable diligence in overcoming the obstacles.” (*Howard v. Thrifty Drug & Discount Stores* (1995) 10 Cal.4th 424, 438.)

“What is impossible, impracticable or futile must be determined in light of all the circumstances in the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves. [Citations.] The critical factor in applying these exceptions to a given factual situation is whether the plaintiff exercised reasonable diligence in prosecuting his or her case.” (*Moran v. Superior Court* (1983) 35 Cal.3d 229, 238.) “ ‘ “Reasonable diligence places on a plaintiff the affirmative duty to make every reasonable effort to bring a case to trial within five years, even during the last month of its statutory life.” ’ ” (*Sanchez v. City of Los Angeles* (2003) 109 Cal.App.4th 1262, 1270, italics omitted.) “The exercise of reasonable diligence requires a plaintiff to ‘ “keep track of the pertinent dates which are crucial to maintenance of his lawsuit, and to see that the action is brought to trial within the five-year period.” ’ ” (*Wilcox v. Ford* (1988) 206 Cal.App.3d 1170, 1175.) A plaintiff “has an affirmative obligation to do what is necessary to move the action forward to trial in timely fashion.” (*Tanguilig v. Neiman Marcus Group, Inc.* (2018) 22 Cal.App.5th 313, 322.) It is not the trial court's job to ensure a case is brought to trial within the five-year period. Instead, “if a trial court does not take any action,” it is the plaintiff's obligation “ ‘to seek an order from the trial court’ ” scheduling the trial by the statutory deadline. (*Oswald v. Landmark Builders, Inc.* (2023) 97 Cal.App.5th 240, 249.)

3. Discussion

Based on the filing date of February 1, 2021, the five-year deadline to bring the case to trial would regularly expire on January 31, 2026.

Plaintiff argues it was impossible, impracticable, or futile to bring the action to trial within the required time period because (1) defendant repeatedly failed to appear at status conferences to set trial (Opp. at 1:21–24); and (2) the uncertainty of whether plaintiff needed to undergo shoulder surgery “made it extremely uncertain and impractical to try the case or settle at that time due to the huge difference in damages should the shoulder surgery have been necessary.”¹ (Opp. at 2:8–12.)

The court finds that plaintiff has not established it was impossible, impracticable, or futile to bring the action to trial. Ultimately, plaintiff did not require surgery on his shoulder. It appears that this determination was made prior to the October 1, 2025, hearing, but, at any rate, Plaintiff’s attorney made this point clear to the court on January 6, 2026, stating plaintiff was ready for trial. Plaintiff raised no objection to the court continuing the January 6 Case Management Conference, or even the January 20 Case Management Conference, despite the court repeatedly mentioning the five-year deadline.

Despite defense counsel’s failure to appear on January 6, and the court’s clerical error of failing to serve defendant notice of the January 20 hearing, it was plaintiff’s obligation to seek an order from the trial court scheduling trial by the statutory deadline. He did not do so.

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¹ Plaintiff does not identify the alleged time period he claims it was impossible, impracticable, or futile to bring the case to trial due to plaintiff’s shoulder injury, but surgery appears to have been contemplated in 2025.

There being no applicable exception to the five-year deadline under Code of Civil Procedure section 583.310, the court grants the motion to dismiss with prejudice.

TENTATIVE RULING # 2: THE MOTION TO DISMISS IS GRANTED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.